

Social Media, Freedom of Expression and Right to Privacy: An Analysis.

Nilima Rahman, LL.B,LLM, Jahangirnagar University.

TABLE OF CONTENTS

ABSTRACT	2
INTRODUCTION	3
CONCEPT OF SOCIAL MEDIA	4
CONCEPT OF FREEDOM OF EXPRESSION	7
IMPACT OF SOCIAL MEDIA ON FREEDOM OF EXPRESSION	10
INFRINGEMENT OF FREEDOM OF SPEECH OR EXPRESSION IN SOCIAL MEDIA: (CASE STUDY)	14
CONCEPT OF RIGHT TO PRIVACY	20
IMPACT OF SOCIAL MEDIA ON THE RIGHT TO PRIVACY	23
SOCIAL MEDIA AND A REASONABLE EXPECTATION OF PRIVACY	26
CONCLUSION	33

ABSTRACT

The rapid rise of social media platforms has transformed the way individuals express themselves and interact in the digital age. This technological advancement has raised concerns regarding the delicate balance between freedom of expression and the right to privacy. This paper begins by exploring the concept of freedom of expression in the context of social media, examining the legal and ethical frameworks that govern this fundamental right. Furthermore, the research delves into the right to privacy, addressing the complexities arising from the collection, storage, and analysis of personal data by social media companies. It critically examines the legal frameworks and privacy policies that govern these practices and assesses their adequacy in safeguarding individuals' privacy rights. The study also investigates the role of social media platforms as intermediaries in facilitating and regulating online communication. It evaluates the practices employed by these platforms to moderate content and the implications for freedom of expression. It delves into the challenges of balancing the need to combat hate speech, misinformation, and other harmful content while respecting users' right to express themselves freely. Additionally, this paper explores both the positive and negative perspective of social media in shaping our life, freedom of expression and privacy. It also shows the ways on how freedom of speech and right to privacy is infringed through social media. Finally, this paper explores who can claim a reasonable expectation of privacy and who can not through some case decisions.

Keywords: Digital Age, Ethical Frameworks, Freedom of Expression, Legal Frameworks, Personal Data, Privacy Policies, Right to Privacy, Social Media.

INTRODUCTION

In this world of technological revolution, social media appears to be crucial in shaping our lifestyles and fundamental rights. Social media platforms have a significant impact on how someone can express themselves, find information, and interact with others. The dependency on social media has reached an unprecedented level. Social media has emerged as an essential part of our everyday lives over the past few years, making a profound impact on how we communicate and talk to each other. The network plays a central role in modern life. The modern world is facing for the first time a phase where divergent opinions, ideas, and views can exist in a constructive way.¹ Freedom of speech and privacy are interdependent rights in the digital age.² Both are fundamental necessities for the development and self-fulfillment of free and democratic communities.³ Privacy and freedom of expression are two sides of the same coin which are essential in order to enjoy each other.⁴ The balance of freedom of expression and the right to privacy has been immensely debated, as platforms such as Facebook and Google continue to develop.⁵ Applications like Facebook, Instagram, TikTok, Bigo Live, Likee, Twitter, and WhatsApp have emerged as important forums for numerous allegations of misdemeanors.⁶

It is noteworthy that various stakeholders, like big tech companies, government agencies, extremist groups, and hackers are found to be manipulating social media to gain an advantage economically and politically at the cost of causing human rights violations. The way these infringements occur is frightening. Mass surveillance, a suppressing tool for many regimes to exploit freedom of speech and undermine democratic processes, affects the dignity of people and makes a slippery slope for other violations of human

¹ Lee Rainie, Janna Anderson and Jonathan Albright, 'The Future of Free Speech, Trolls, Anonymity and Fake News Online' (2017) <https://www.pewresearch.org/internet/2017/03/29/the-future-of-free-speech-trolls-anonymity-and-fake-news-online/> accessed 25 May 2023.

² Sneha Jaiswal, 'The Line Between Right to Privacy and Freedom of Speech in The Digital Media' (2021) <https://blog.ipleaders.in/line-between-right-privacy-freedom-speech-digital-media/> accessed 25 May 2023.

³ *ibid.*

⁴ Carly Nyst, 'Two Sides of The Same Coin- The Right to Privacy and Freedom of Expression' (2018) <https://privacyinternational.org/blog/1111/two-sides-same-coin-right-privacy-and-freedom-expression> accessed 25 May 2023.

⁵ Lee Rainie, (n 1).

⁶ Dewan Alif Ovi, 'Social Media and Human Rights: Friend or Foe?' (2023) <https://www.dhakatribune.com/op-ed/2023/01/01/social-media-and-human-rights-friend-or-foe> accessed 25 May 2023.

rights such as freedom of assembly, freedom of expression, freedom of movement, principle of non-discrimination, right to vote and effective political participation.⁷ The spread of disinformation in social media poses serious consequences on people's life and dignity; and also affects human rights, particularly on freedom of expression, freedom of opinion and privacy.⁸ It fuels propaganda and hate speech, resulting in violent chaos and massacres.⁹ As privacy infringements have been found to be connected to serious human rights violations, it is of utmost importance to analyze the way these infringements occur. However, social media has the potential to be used for both positive and negative purposes. Its impact on human rights depends on how it is used, regulated, and governed by individuals, governments, and the platforms themselves.

Therefore, this research paper will be focused-

Firstly, on the legislation, general comments and case decisions where the freedom of expression and right to privacy have been established. Secondly, the impact of social media on both freedom of expression and right to privacy. Thirdly, the infringement of freedom of expression through social media. (Bangladesh perspective). And finally, who can claim a reasonable expectation of right to privacy and who can not.

This study shall enable the readers to understand the potential impact people face in their personal lives by unethical intrusion via social media. It portrays the manner in which people's rights to privacy and freedom of expression get infringed on social media.

CONCEPT OF SOCIAL MEDIA

From the beginning, social media have transformed from places for relaxation into forums for communication, information, and public discourse.¹⁰ They have evolved into vast areas where a significant amount of the population develops at least a portion of their

⁷ Privacy International, 'Mass Surveillance' <<https://privacyinternational.org/learn/mass-surveillance>> accessed 26 May 2023.

⁸ Civil and Political Rights, 'Freedom of Expression is Key to Countering Disinformation' (2022) <<https://www.ohchr.org/en/stories/2022/11/freedom-expression-key-countering-disinformation>> accessed 26 May 2023.

⁹ Antonio Guterres, 'Hate Speech and Real Harm' (2019) <<https://www.un.org/en/hate-speech/understanding-hate-speech/hate-speech-and-real-harm>> accessed 26 May 2023.

¹⁰ Javier Guallar, Jaume Suau, Carlos Ruiz-Caballero, Albert Saez and Pere Masip, 'Re-dissemination of News And Public Debate on Social Networks' (2016) <<https://revista.profesionaldelainformacion.com/index.php/EPI/article/view/epi.2016.may.05>> accessed 26 May 2023.

daily social lives. For example, Facebook has 2.04 billion daily active users as of the first third of 2023, compared to 77 million daily active users at the start of 2022.¹¹ Even if they don't actively seek it, people have access to information on politics and public affairs at such places.¹² Facebook and its predecessors, like Myspace, began as websites where users could connect with friends as well as make new ones.¹³ Social networking websites can thus be employed as instruments to develop and strengthen interpersonal relationships among citizens.¹⁴ This implies that social networks can be helpful for establishing new connections and forging new relationships in addition to maintaining and arranging already-existing connections between users.¹⁵ Simply put, social media platforms are helpful for connecting people with new contacts, expanding one's network of contacts, and strengthening relationships with those they currently know.¹⁶ Social media turned into important platforms for the dissemination and circulation of news and information regarding political and public events.¹⁷ Citizens are now nodes connected to another node in a larger network rather than the terminus of a path in the news delivery circuit.¹⁸ Thus, social media have evolved into an expansion of the traditional public sphere, creating a new digital public sphere where civil and political issues are shared and

¹¹ S. Dixon, 'Facebook: Quarterly Number of MAU (Monthly Active Users) Worldwide 2008-2023' (2023) <<https://www.statista.com/statistics/264810/number-of-monthly-active-facebook-users-worldwide/>> accessed 27 May 2023.

¹² Richard Fletcher and Rasmus Kleis Nielsen, 'Are People Incidentally Exposed to News on Social Media? A Comparative Analysis' (2018) <<https://journals.sagepub.com/doi/10.1177/1461444817724170>> accessed 27 May 2023.

¹³ Boyd, D.M. and Ellison, Social Network Sites: Definition, History and Scholarship (2010) IEEE Engineering Management Review 38(3).

¹⁴ Jih-Hsuan Tammy Lin, 'Strategic Social Grooming: Emergent Social Grooming Styles on Facebook, Social Capital and Well-Being' (2019) <<https://academic.oup.com/jcmc/article/24/3/90/5382474>> accessed on 27 May 2023.

¹⁵ Joe Phua, Seunga Venus Jin and Jihoon (Jay) Kim, 'Uses And Gratifications of Social Networking Sites for Bridging And Bonding Social Capital: A Comparison of Facebook, Twitter, Instagram, And Snapchat' (2017) <<https://www.sciencedirect.com/science/article/abs/pii/S0747563217301140?via%3dIhuh>> accessed 27 May 2023.

¹⁶ Nicole B. Ellison, Charles Steinfield and Cliff Lampe, 'The Benefits of Facebook "Friends": Social Capital And College Students' Use of Online Social Network Sites' (2007) <<https://academic.oup.com/jcmc/article/12/4/1143/4582961>> accessed 27 May 2023.

¹⁷ Nicolas M. Anspach, Jay T. Jennings and Kevin Arceneaux, 'A Little Bit of Knowledge: Facebook's New Feed And Self-Perceptions of Knowledge' (2019) <<https://journals.sagepub.com/doi/10.1177/2053168018816189>> accessed 28 May 2023.

¹⁸ Matt Carlson, 'Embedded Links, Embedded Meanings: Social Media Commentary And News Sharing as Mundane Media Criticism' p. 915-924 (2016) <<https://www.tandfonline.com/doi/full/10.1080/1461670X.2016.1169210>> accessed 28 May 2023.

discussed.¹⁹ The planning and mobilization of social movements and protests have benefited from these new public arenas.²⁰ Opposition parties, minorities, or stranger groups that are typically marginalized in mainstream legacy media can spread their thoughts and opinions through social media,²¹ which can also be used to mobilize political engagement.²² Social media can therefore offer rich, comprehensive, including alternative sources of data for events that are ignored or dismissed by the traditional older media along with other regular or traditional media outlets.²³ In other words, they at least theoretically have the potential to promote and ensure the necessary diversity of viewpoints in any given society. Social media platforms have the capacity to expose citizens and users to more multiple sources, which could result in citizens having a broader, greater distinct picture of occurrences and versions of relevant and beyond facts for political and social events.²⁴ This is true despite the worry that users will be trapped in a virtual echo chamber where they will only be exposed to opinions that are similar to their own and find it harder to find multidisciplinary viewpoints.²⁵ Because people unintentionally encounter news and sources on social media that they wouldn't actively seek out in other settings, social media has the ability to expose people to ideologically

¹⁹ Pere Masip, Carlos Ruiz-Caballero and Jaume Suau, *Active Audiences And Social Discussion on The Digital Public Sphere* (2019) Review Article 28(2)
<<https://revista.profesionaldelainformacion.com/index.php/EPI/article/view/epi.2019.mar.04>> accessed 28 May 2023.

²⁰ Colin Agur and Nicholas Frisch, 'Digital Disobedience And The Limits of Persuasion: Social Media Activism in Hong Kong's 2014 Umbrella Movement' (2019)
<<https://journals.sagepub.com/doi/10.1177/2056305119827002>> accessed 28 May 2023.

²¹ Marjia Anna Bekafigo and Allan McBride, 'Who Tweets About Politics?: Political Participation of Twitter Users During The 2011 Gubernatorial Elections' (2013)
<<https://journals.sagepub.com/doi/10.1177/0894439313490405>> accessed 28 May 2023.

²² Elias Said-Hung and Francisco Segado-Boj, 'Social Media Mobilization in Venezuela: A Case Study' (2018)
<https://www.researchgate.net/publication/333812315_Social_Media_Mobilization_in_Venezuela_A_Case_Study> accessed 29 May 2023.

²³ Zeynep Tufekci and Christopher Wilson, 'Social Media And The Decision to Participate in Political Protest: Observations From Tahrir Square' (2012)
<https://academic.oup.com/joc/article-abstract/62/2/363/4085823?redirectedFrom=full_text> accessed 29 May 2023.

²⁴ Pere Masip, Jaume Suau-Martinez and Carlos Ruiz-Caballero, 'Questioning The Selective Exposure to News: Understanding The Impact of Social Networks on Political News Consumption' (2017)
<<https://journals.sagepub.com/doi/10.1177/0002764217708586>> accessed 29 May 2023.

²⁵ Elizabeth Dubois and Grant Blank, 'The Echo Chamber is Overstated: The Moderating Effect of Political Interest And Diverse Media' (2018)
<<https://www.tandfonline.com/doi/full/10.1080/1369118X.2018.1428656>> accessed 29 May 2023.

polar opposite sources and perspectives of the same events.²⁶ This has an additional significant effect since users who spend a longer duration on social media have access to more news and exhibit greater levels of political engagement both online and offline.²⁷

CONCEPT OF FREEDOM OF EXPRESSION

The right to freedom of expression is acknowledged as an essential human right.²⁸ It has been said that a state government should not be allowed to restrict freedom of expression because it is an essential feature of being a member of a democratic society.²⁹ Several legal instruments around the world support the fundamental right to freedom of expression. The primary source of international law regarding freedom of expression is the Universal Declaration of Human Rights (UDHR). Article 19 of the UDHR deals with the protection of freedom of opinion and expression. It is said that -

“Every person enjoys the right to freedom of expression, which includes the ability to express their opinions without intervention and the freedom to seek out, receive, and share ideas across all boundaries and media.”³⁰

Then comes the International Covenant on Civil and Political Rights (ICCPR). By ensuring freedom of expression, the ICCPR builds on the principles of the UDHR.³¹ State governments formally agree to upholding the right to freedom of expression by ratifying the ICCPR.³² The UDHR and the ICCPR both extend safeguards beyond conventional

²⁶ Eytan Bakshy, Solomon Messing and Lada A. Adamic, ‘Exposure to Ideologically Diverse News And Opinion on Facebook’ (May 2015) <<https://www.science.org/doi/10.1126/science.aaa1160>> accessed 29 May 2023.

²⁷ Homero Gil De Zuniga, Nakwon Jung and Sebastian Valenzuela, ‘Social Media Use for News And Individuals’ Social Capital, Civic Engagement And Political Participation’ (2012) <<https://academic.oup.com/jcmc/article/17/3/319/4067682>> accessed 29 May 2023.

²⁸ African Affairs Committee and Freedom of Expression Subcommittee, ‘The Right to Freedom of Expression on The Internet as It Applies to Social Media in Africa’ (2016) <<https://www2.nycbar.org/pdf/report/uploads/20073028-FreedomofExpressionontheInternetAfrican312016.pdf>> accessed 29 May 2023.

²⁹ *ibid.*

³⁰ Universal Declaration of Human Rights (adopted 10 December 1948) UNGA Res 217A (III) (UDHR) art 19 <<https://www.un.org/en/about-us/universal-declaration-of-human-rights#:~:text=Article%2019,media%20and%20regardless%20of%20frontiers.>> accessed 29 May 2023.

³¹ International Covenant on Civil and Political Rights (ICCPR), (adopted 19 December 1966, entered into force 23 March 1976) <<https://www.ohchr.org/en/instruments-mechanisms/instruments/international-covenant-civil-and-political-rights#:~:text=Article%2019,-1.&text=opinions%20without%20interference,-2..other%20media%20of%20his%20choice.>> accessed 23 May 2023.

³² *ibid.*

modes and allow for expression in novel and emerging modalities.³³ Article 19(2) of ICCPR states that-

“Everyone has the right to express themselves freely, which includes the freedom to look for, receive, and share data and thoughts of all sorts, across all boundaries, whether verbally, in writing or print, via the creation of art, or via any other medium of his choosing.”³⁴

In General Comment No. 34, the UN Human Rights Committee (HRC) explains how it interprets Article 19.³⁵ HRC makes it clear that political beliefs are protected speech and that Article 19 is violated by harassment and intimidation, including arrest, trial, or jail based on those opinions.³⁶ The HRC argues that all types of communication and means of expression are protected under Article 19.³⁷ Last but not least, the HRC instructs State parties to support new media independence and public access, including Internet and mobile-based data systems.³⁸ Further, the European Convention on Human Rights (ECHR) also talks about freedom of expression. According to Article 10 of the ECHR, “The right to freedom of expression belongs to everyone. This freedom shall extend to the ability to express ideas freely, without hindrance from governmental authorities, beyond national boundaries.”³⁹ The American Convention on Human Rights (ACHR) also deals with freedom of expression. Article 13(1) of ACHR states that-

“The freedom of thinking and speech belongs to everyone. This freedom involves the ability to freely seek out, acquire, and share knowledge and ideas of any type, across all boundaries, whether it be verbally, in words, in print, visually, artistically, or by any other means.”⁴⁰

³³ Universal, (n 30).

³⁴ International, (n 31) art 19(2).

³⁵ Human Rights Committee, General Comment No. 34, Article 19: Freedoms of Opinion and Expression, UN Doc. CCPR/C/GC/34 (12 September 2011) <<https://www2.ohchr.org/english/bodies/hrc/docs/gc34.pdf>> accessed 24 May 2023.

³⁶ *ibid*, para 9.

³⁷ *ibid*, para 11-12.

³⁸ *ibid*, para 14-16.

³⁹ European Convention on Human Rights (ECHR), (adopted 4 November 1950, entered into force 3 September 1953) art 10

<<http://fra.europa.eu/en/law-reference/european-convention-human-rights-article-10#:~:text=Article%2010%201..authority%20and%20regardless%20of%20frontiers>> accessed 22 May 2023.

⁴⁰ American Convention on Human Right (ACHR), (adopted 22 November 1969, entered into force 18 July 1978) art 13(1) <<https://www.refworld.org/docid/3ae6b36510.html>> accessed 29 May 2023.

In additionally, Article 9 of the African Charter on Human and Peoples' Rights claims that "Everyone is entitled to the right to information and the right to express opinions within the guidelines of the law."⁴¹

However, According to Article 39 of the Constitution of Bangladesh, people in Bangladesh have the right to free speech and also states that "The freedom of speech, conscience, and thinking is protected by this article. It declares that each and every person has the right to communication and information, as well as the freedom of the media and expression."⁴²

There are some case decisions where the right to freedom of expression is established as well. Firstly, in the case of *Handyside v United Kingdom*,⁴³ The seizure of a book deemed to be obscene was upheld by the European Court of Human Rights as not violating the right to freedom of expression. Richard Handyside was found guilty of possessing obscene materials for profit in accordance with the Obscene Publications Act after buying the British rights to a book intended to inform young readers about sex (which included sections on topics including sexual activity, pornography, homosexuality, abortion, etc.). The Court found that the Act's goal of protecting children, along with its careful and methodical implementation, satisfied the requirements for a restriction on free expression within a State's discretion to assess what was necessary in a democratic society. This became one of the initial cases involving freedom of expression that the Court reviewed, and it established a high standard for how such matters should be judged that has been followed ever since.⁴⁴

Secondly, there was a case under the Human Rights Inter-American System, namely- *Rios v. Venezuela*.⁴⁵ In this case, a number of individuals connected to the television station Radio Caracas Television (RCTV) were subjected to several incidents of bullying,

⁴¹ African Charter on Human and Peoples' Rights, (adopted 1 June 1981, entered into force 21 October, 1986) art 9
<https://au.int/sites/default/files/treaties/36390-treaty-0011_-_african_charter_on_human_and_peoples_rights_e.pdf> accessed 30 May 2023.

⁴² Constitution of the People's Republic of Bangladesh (1972), art 39
<<http://bdlaws.minlaw.gov.bd/act-367/section-24587.html>> accessed 30 May 2023.

⁴³ *Handyside v. United Kingdom* [1976] 5 ECHR 49
<<https://globalfreedomofexpression.columbia.edu/cases/h>> accessed 30 May 2023.

⁴⁴ *ibid.*

⁴⁵ *Rios v. Venezuela* [2015] IACHR 2 Inter-Am. Ct. H.R. (ser. C) No. 293 [2015]
<<https://globalfreedomofexpression.columbia.edu/cases/rios-v-venezuela/>> accessed 30 May 2023.

threats, and physical and verbal assaults for exercising their right to free speech. A number of Venezuelan government representatives also made threatening remarks against these individuals and the journalistic activity of the television channel. After hearing the case, the Inter-American Court concluded that all of these actions were attempts to hamper, interfere with, or intimidate RCTV journalists from engaging in their professional activities. The Court stated that people's freedom of expression includes both the right to state their own opinions along with the right to look for, receive, and disseminate any information or ideas. It emphasized once more how crucial freedom of expression is to the development of democratic communities.

Again, in the case of *New York Times v Sullivan*,⁴⁶ A lawsuit for libel was brought against Times. The Alabama jury found in favor of Times but gave Sullivan damages. The US Supreme Court determined that the libel judgment violated the constitutional guarantee of freedom of expression during the appeals process. Thus despite the fact that it was a lawsuit for libel between two private individuals, the constitutional guarantee of freedom of expression was victorious.

In the famous *Luth case*⁴⁷ of Germany, Viet Harlam was criticized by Eric Luth in a letter openly for his collaboration with the Nazi regime and a boycott of his new movie was demanded. An injunction against Luth was secured by the producer and distribution firm. Luth then brought a constitutional lawsuit about free speech. Despite the fact that this was a private dispute between two individuals, the constitutional court held that the injunction fundamentally curtailed Luth's freedom of speech.

These are some of the cases where the right to freedom of expression is upheld.

⁴⁶ *The New York Times Company, Petitioner, v. L. B. Sullivan. Ralph D. Abernathy et al., Petitioners, v. L. B. Sullivan* [1964] USSC 39 376 U.S. 254 84 S.Ct. 710 11 L.Ed.2d 686

<<https://www.law.cornell.edu/supremecourt/text/376/254>> accessed 31 May 2023.

⁴⁷ Stephen Jaggi, 'Luth Case (Ger)' (2016)

<<https://oxcon.oupplaw.com/display/10.1093/law-mpeccol/law-mpeccol-e556>> accessed 31 May 2023.

IMPACT OF SOCIAL MEDIA ON FREEDOM OF EXPRESSION

The proposition that people should be able to freely express themselves and that such expression is entitled to protection by the law is the foundation of the notion of freedom of speech.⁴⁸ The right to freedom of speech has been impacted by social media in both positive and harmful ways.

On the one hand, social media platforms have given people a stage to express their opinions worldwide. They have created it feasible for individuals to interact with those who share their points of view and to engage in meaningful dialogue with them. The advancement of social and political movements, giving a voice to minorities, and easing the exchange of knowledge have all benefited from social media.⁴⁹ Moreover, freedom of expression and speech have been significantly impacted by social media worldwide. More than ever, it has made it possible for people to express their ideas, beliefs, and points of view with a wide audience.⁵⁰ People may now access information and concepts from all over the world via social media, which gives them the opportunity to establish their own thoughts and have fruitful discussions with others who share their viewpoints. Due to the increased range of opinions as a result, significant topics can now be discussed in a way that is both inclusive and open.⁵¹ People may now access an extensive amount of previously inaccessible information which helps them to make important decisions. Finally, the development of social media and networks has made it possible for people to connect with one another and express their opinions in a secure environment. Freedom of expression and free speech has increased globally as a result of all of these factors. Freedom of speech has been significantly impacted by the development of social media. People now have a global platform to communicate their views and opinions through

⁴⁸ Bashash Mahmood, 'What's on A Tweet? Impact of Social Media on Freedom of Expression' *Kashmir Reader* (Kashmir, 8 April 2023) <https://kashmirreader.com/2023/04/08/whats-in-a-tweet-impact-of-social-media-on-freedom-of-speech/> accessed 24 May 2023.

⁴⁹ *ibid.*

⁵⁰ Ruchi Rao, 'Internet And Its Impact on Free Speech' (2023) <https://jlrs.com/internet-and-its-impact-on-free-speech/> accessed 25 May 2023.

⁵¹ *ibid.*

social media sites like Facebook, Twitter, and YouTube.⁵² They have helped many people connect with people throughout the world by becoming their main forms of communication. The development of social media additionally led to a number of positive effects on the right to free speech. Such as-

- Increasing Information Access: The easier access to information is one of social media's most significant advantages for freedom of expression. People may now more easily obtain information from around the globe through social media. As a result, information has become more democratic, which has benefited the right to free expression. People may now share their thoughts on a variety of topics on social media, which has resulted in the development of a society that is better informed.
- Increasing the Impact of Minority Voices: By increasing the voices of minority groups, social media has a positive effect on the freedom of expression. People who had previously been eliminated to share their thoughts on social media are now able to share their stories and thoughts with a larger audience via that social media. Due to this, society is now more inclusive and everyone's opinions are taken into consideration. The development of social uprisings that have a good effect on society has been facilitated by the use of social media, which has also allowed individuals to form groups and gather around issues that directly touch them.
- Growing civic involvement: Social media has improved civic engagement, which has benefited freedom of expression as well. People may now interact with and hold accountable their elected officials more easily because of social media. People can now organize and mobilize over issues that directly touch them through social media, which has resulted in the development of social movements that have a positive effect on society. A more educated society has resulted from the ability of people to share their opinions on various problems through social media.

⁵² Bashash, (n 48).

On the other hand, social media has additionally been under criticism for spreading fake news, hate speech, and inaccurate information.⁵³ People who have unpopular opinions or who belong to minority populations have been targeted for bullying, harassment, and coercion using this tactic.⁵⁴ Furthermore, social media has certain negative effects on free expression though. Social media sites have come under criticism for their involvement in the dissemination of false information, fake news, and hate speech.⁵⁵ Additionally, they have been criticized for restricting free speech and censoring content. Although freedom of expression and speech on the internet has been impacted significantly, both governments and companies have imposed restrictions on access to particular kinds of content and put in place regulations that restrict people's freedom of speech.⁵⁶ The main objectives behind this action have been to safeguard national security and stop the dissemination of hate speech and terrorist propaganda.⁵⁷ It has, however, also been used to suppress political disagreement and opposition to government programs, as well as to limit the availability of data that can empower citizens and aid them in making informed decisions. Further limiting the freedom of expression on the internet are online censorship and the use of robots and artificial intelligence to manipulate online debates. The growth of social networking sites has also had a number of negative effects on the right to free expression. Such as-

- Spread of False Information and Propaganda: The spread of misinformation and fake news on social media is one of the greatest constraints on the right to free expression. False information is now frequently disseminated on social media, which can seriously harm the democratic process. The dissemination of false information and propaganda has the power to influence some audiences' opinions.⁵⁸ This may result in the distorting of the public's sentiments, which could be harmful to the right to free expression.
- Manipulation of online content: Over the past year, governments around worldwide have significantly expanded their efforts to alter information on social

⁵³ *ibid.*

⁵⁴ *ibid.*

⁵⁵ *ibid.*

⁵⁶ Ruchi, (n 50).

⁵⁷ *ibid.*

⁵⁸ Bolane Olaniran and Indi Williams, 'Social Media Effects: Hijacking Democracy And Civility in Civic Engagement' (2020) <<https://www.ncbi.nlm.nih.gov/pmc/articles/PMC7343248/>> accessed 25 May 2023.

media.⁵⁹ The Chinese, as well as Russian governments, are two of the most hostile in manipulating online information to alter public opinion.⁶⁰ This control of online material can lead to a decrease in internet freedom which may have a negative effect on freedom of expression.

- Erosion of freedom of expression: Another negative effect of social media is the erosion of free expression. Freedom of expression is an essential component of living in an open and free society, as well as a basic human necessity.⁶¹ However, the erosion of free expression makes the majority of the population more at risk and threatens the entire democratic system. Several elements can contribute to the breakdown of freedom of expression, including the actions of governments, global organizations, online platforms, financial groups, lobbying professionals, and so on.⁶²
- Harassment and Cyberbullying: Harassment and Cyberbullying have also increased as a result of social media. Cyberbullying as well as harassment can have serious consequences for free expression. It may result in self-censorship, which can be harmful to the democratic process. Harassment and Cyberbullying can also result in the silencing of minority voices, which has a negative influence on free expression.

Overall, social media has had a number of negative effects on free expression. It is critical to strike the appropriate balance between the positive effects of social media and its negative effects on free expression. This harmony can be achieved by enacting rules that promote free expression while simultaneously addressing the negative effects of social media.

⁵⁹ Sanja Kelly, Mai Truong, Adrian Shahbaz, Madeline Earp and Jessica White, 'Manipulating Social Media to Undermine Democracy' (2017) <<https://freedomhouse.org/report/freedom-net/2017/manipulating-social-media-undermine-democracy>> accessed 25 May 2023.

⁶⁰ *ibid.*

⁶¹ Aniceto Masferrer, 'The Decline of Freedom of Expression And Social Vulnerability in Western Democracy' (2023) <<https://www.ncbi.nlm.nih.gov/pmc/articles/PMC10008147/>> accessed 25 May 2023.

⁶² *ibid.*

INFRINGEMENT OF FREEDOM OF SPEECH OR EXPRESSION IN SOCIAL MEDIA: (CASE STUDY)

Social media have evolved into a public forum for the discussion and dissemination of information of political and social significance, but they are still centralized platforms.⁶³ This has a number of effects, including giving businesses the ability to shut down or silence criticism and control the flow of information. The information that is publicly shared through social media channels is completely under the authority of these companies. Positive aspects of this situation include the potential for social media to act as allies in the detection, prosecution, and halting of content and promotion associated with illegal activity, propagation of hatred, or terrorist organizations.⁶⁴ Social media can become allies in the detection, prosecution, and banning of content and promotion related to illegal activity, hatred, or terrorist organizations. This situation has some positive aspects. The potential threat to free speech presented by social media platform's ability to unilaterally remove postings and material from their sites is a drawback to the influence they have over the content that is shared through them.

As previously indicated, they sometimes use this authority to protect society from immoral or dangerous content, as is the case with pornography, graphic violence, or other types of issues. For example, a feminist group, FEMEN, was charged by Facebook with promoting pornography because they used nudity in their protests, and social media platforms are routinely accused of unjustly restricting information.⁶⁵

As a democratic nation, Bangladesh's Constitution recognizes the liberty to freedom of expression and speech in Articles 39 and 43(b) as well.⁶⁶ But sections 57, 54, 61, and 76 of the Information and Communication Technology (ICT) Act, 2006, and its Amendment of 2013 have given the police a great deal of discretionary power; and through those

⁶³ Jean-Christophe Plantin, Carl Lagoze and Christian Sandvig, 'Infrastructure Studies Meet Platform Studies in The Age of Google And Facebook' (2016)

<<https://journals.sagepub.com/doi/10.1177/1461444816661553>> accessed 25 May 2023.

⁶⁴ *ibid.*

⁶⁵ Leite, R.D.A. & Cardoso, G.S., 'The Arbitrariness of Censorship Parameters on Facebook and the Prohibition of Femen's Page' (2015) 19 *Artemis* 137-143.

⁶⁶ Kaium Ahmed, 'Localisation of Data - A Threat to Citizens' Right to Privacy?' *The Daily Star* (Dhaka, 19 May 2023)

<<https://www.thedailystar.net/law-our-rights/news/localisation-data-threat-citizens-right-privacy-3324051>> accessed 26 May 2023.

sections the constitutional mandates have been violated.⁶⁷ This is one of the main concerns in the current state of Bangladesh. Some situations regarding these issues are as follows:

- The arrest of journalist Probir Shikder⁶⁸ has been one of the most talked-about cases in this regard. Following a complaint submitted by someone who claimed that Mr. Shikder had criticized a government minister in office in a Facebook comment, the police detained him on charges of defamation. A few days before his detention, Mr. Shikder raised safety worries on Facebook because he believed that a powerful group, including the minister, was planning to harm or murder him. He went to the neighborhood police station to register a general report for his protection, but the officers refused to take a record of his complaint. The defamation lawsuit was brought by a third party, whose name was left out of the Facebook status. Mr. Shikder was detained by the police for three days for questioning after being arrested in accordance with section 57 of the ICT Act.
- A primary school teacher in the Patuakhali district, south of Dhaka, named Nusrat Jahan Sonia⁶⁹ was detained by police on the evening of August 4 while she was seven months pregnant. She was 25 years old. Under section 57 of the ICT Act, they detained her for nearly two weeks. Sonia was accused of spreading rumors as her offense. A member of her family, however, claimed that Sonia had only shared a Facebook message that supposedly called for restraint and calmness in a student protest regarding traffic safety. She has been put on administrative leave from her position at a government school until her legal matter is resolved, which could take years.
- In a comparable situation, Maidul Islam,⁷⁰ a professor at Chittagong University, has been detained since September after being accused of violating section 57 by writing defamatory comments about the government's leader on social media.

⁶⁷ *ibid.*

⁶⁸ AJM Shafiul Alam Bhuiyan, 'Social Media, Freedom of Expression And The ICT Act' *The Daily Star* (Dhaka, 25 August 2015) <<https://www.thedailystar.net/opinion/politics/news/defence-politics-1873513>> accessed 27 May 2023.

⁶⁹ Human Rights Watch, 'Bangladesh: Crackdown on Social Media' (2018) <<https://www.hrw.org/news/2018/10/19/bangladesh-crackdown-social-media>> accessed 27 May 2023.

⁷⁰ Star Report, 'CU Teacher Maidul Put on Three-Day Remand' *The Daily Star* (Dhaka, 9 October 2018) <<https://www.thedailystar.net/city/chittagong-university-teacher-maidul-islam-remanded-defamatory-remarks-against-pm-1644253>> accessed 27 May 2023.

- Internationally known photographer Shahidul Alam⁷¹ was held in Dhaka on August 5 on suspicion of provoking disturbance by posting on Facebook critical comments about the suppression of student protestors and journalists reporting the events. Alam continues to be detained. Under the harsh section 57 of the Information and Communication Technology Act, 63 years old Alam is charged with spreading false propaganda on social media.
- In May 2020, Mushtaq Ahmed⁷² was detained for questioning the Bangladeshi government's handling of the Covid-19 outbreak on Facebook. He had been refused bail for a minimum of six different times before he passed away in prison on February 25, 2021, from a heart attack.
- Ruhul Amin,⁷³ a rights activist, was detained on February 26, 2021, as a result of a Facebook post in which he criticized Sheikh Hasina, the prime minister of Bangladesh, and the Bangladeshi government over Mushtaq Ahmed's passing. Before being eventually released on bail, he was detained for 45 days and subjected to rigorous questioning.
- Imtiaz Mahmud,⁷⁴ A writer was detained on Wednesday in the capital of the nation, Dhaka, under the ICT Act after writing on Facebook about the rights of minorities in the Chittagong Hills Tracts (CHT) area. On Wednesday, police took him from his Banani home in Dhaka, according to his brother Parvez Mahmud, who spoke to Al Jazeera.
- Abdul Kaium,⁷⁵ A human rights activist charged with violating the Digital Security Act (DSA) on May 11, was detained once more after the head teacher of an Islamic school filed a complaint accusing Abdul Kaium of sharing inappropriate content online. Faruq Ahmed, a police official in Mymensingh, said

⁷¹ Meenakshi Ganguli, 'Bangladesh Photographer Denied Bail After Criticizing Government' (2018)

<<https://www.hrw.org/news/2018/09/11/bangladesh-photographer-denied-bail-after-criticizing-government>> accessed 27 May 2023.

⁷² Amnesty International, 'Bangladesh: End Crackdown on Freedom of Expression Online' (2021)

<<https://www.amnesty.org/en/latest/press-release/2021/07/bangladesh-end-crackdown-on-freedom-of-expression-online/>> accessed 28 May 2023.

⁷³ *ibid.*

⁷⁴ Faisal Mahmud, 'Fresh Speech Concerns in Bangladesh as Writers, Activist Arrested' *Aljazeera* (Dhaka, 16 May 2019)

<<https://www.aljazeera.com/news/2019/5/16/free-speech-concerns-in-bangladesh-as-writers-activist-arrested>> accessed 29 May 2023.

⁷⁵ *ibid.*

to Al Jazeera that Abdul Kaium had been arrested for sharing inappropriate content online. “He received no bail and was referred to prison by the court on Monday,” added Ahmed.

- One might wonder if the pattern of abuse and death threats directed at 10 Minute School,⁷⁶ an online learning platform, can be considered grounds for bringing up the constitutional discussion of considering freedom of expression against additional goals in light of an alleged comment made by one of the school’s former teachers supporting a pro-LGBTQ post and videos about menstruation and sex consent that was posted on its website. The state could have faced a constitutional challenge if it had taken action to remove such films from the Internet under the questionable excuse of offending religious sensitivities. In the present instance, however, the educational platform was compelled to remove the films as a result of threats from private persons who thought the movies went against their religious ethos. The phrase ‘clamp down on free expression and speech’ is used frequently to describe such incidents in a seemingly pseudo-legal context, which begs the most important question: Can activities between private individuals be legally justified under the fundamental right to free speech and expression granted in article 39 of the Constitution?
- Prothom Alo correspondent Shamsuzzaman Shams⁷⁷ was taken into custody on March 29, 2023, at his residence in Savar, an industrial area close to Dhaka. According to Bangladesh’s Home Minister Asaduzzaman Khan, his report was false, fabricated, and ill-motivated, and thus he was held under the Digital Security Act (DSA). A local Awami League politician brought the lawsuit against Shams in response to the Prothom Alo story that was released on March 26, Bangladesh Independence Day. According to Zakir Hossain, a day laborer quoted in the writing, “What will I do with my independence if I cannot afford food?

⁷⁶ Ragib Mahtab, ‘10 Minute School And The Freedom of Expression’ *The Daily Star* (Dhaka, 28 July 2020)

<<https://www.thedailystar.net/law-our-rights/news/10-minute-school-and-the-freedom-expression-1937161>> accessed 1 June 2023.

⁷⁷ Faisal Mahmud, ‘Bangladesh Journalist Arrested After Report on High Food Price’ *Aljazeera* (Dhaka, 29 March 2023)

<<https://www.aljazeera.com/news/2023/3/29/bangladesh-journalist-arrested-after-report-on-high-food-price>> accessed 9 June 2023.

Rice, fish, and meat must be independent.” Shams was prosecuted for publishing false information after a report he wrote about the costly price of food went viral. He was detained under the Digital Security Act (DSA) but eventually released on bail.

- Khadijatul Kubra,⁷⁸ a Jagannath University student who has been imprisoned since August last year after being charged under the Digital Security Act. Her crime was conducting a Facebook webinar during which a guest speaker made contentious statements. SI Khairul Islam of the New Market police force reported seeing the video at 6:25 a.m. on October 11, 2020. Khadija was hosting an event called Humanity for Bangladesh, during which Delwar Hossain made various orders to remove Bangladesh’s legitimate democratic government.

Now if we analyze these cases, we will be able to see that in case of journalist Probir Shikder, primary school teacher Nusrat Jahan Sonia, professor Maidul Islam, photographer Shahidul Alam, Mushtaq Ahmed, rights activist Ruhul Amin, writer Imtiaz Mahmud’s litigation, they were arrested for sharing their opinions on social media. This demonstrates that while social media can be used to express opinions and viewpoints, it can also result in legal action against persons who share opinions that are seen as defamatory or detrimental to others. This also implies that laws and regulations regarding social media can be utilized to limit freedom of speech and expression. Then the case of Abdul Kaium is an example of human rights defenders being persecuted in Bangladesh. This implies that those who use social media to share their thoughts and opinions may suffer legal sanctions and punishment if their views are deemed damaging to those in authority. Additionally, Abdul Kaium was brutally tortured in prison. This emphasizes the importance of an impartial and equitable legal system that protects individuals’ rights to share their opinions and ideas without fear of harassment or torture. Again the case against 10-Minute School points out that laws and regulations related to social media restrict free expression. This similarly implies that laws and regulations regarding social media can be utilized to limit freedom of speech and expression as well. Similarly, the case against Prothom Alo correspondent Shamsuzzaman Shams and university student

⁷⁸ Staff Correspondent, ‘DSA Case: JnU Student Khadija in Jail for 8 Months’ *The Prothom Alo* (Dhaka, 12 April 2023) <<https://en.prothomalo.com/bangladesh/udnvi77fie>> accessed 4 June 2023.

Khadijatul Kubra is also held under section 57 of the Digital Security Act(DSA). In section 57 of the DSA, police have the drastic power to arrest any person randomly. They do not even justify the core meaning of any shared opinions or thoughts on social media. Although the practice of democracy exists in an independent country, it cannot always meet the needs of the entire population. The enforcement of freedom of expression should be the top priority of any administration, and it cannot be restricted by the people for their own interests. The mass media, the press, and we all play important roles in a democracy, which should not be harmed by lawlessness. However, in this circumstance, the UN Special Rapporteur on severe need and human rights, Olivier De Schutter, proposed that the Digital Security Act be suspended until qualitative changes are made to the law.⁷⁹ According to him, “journalists, human rights protectors, opposition leaders, and scholars have been detained under the legislation for exercising their right to free expression.”⁸⁰ He also added that “it is not natural for individuals fighting for basic freedoms to live in fear and intimidation. Because certain prosecutors habitually abuse the DSA, it should be substantially rethought.”⁸¹

CONCEPT OF RIGHT TO PRIVACY

Another major human rights concern caused by the spread of social media is privacy. Internet based companies and social media platforms collect large amounts of personal information from users, allowing for the continual development of specific Internet searches.⁸² Facebook is frequently criticized for modifying its platform in manners that alter users’ privacy preferences; its default settings frequently promote accessibility over personal privacy. While a user can recover his or her private settings, he or she may not always be aware that the guidelines and settings for privacy have changed, and so may mistakenly share personal information far more freely than he or she wishes. Julian Assange, the founder of Wikileaks, has openly defined Facebook as “the most horrible

⁷⁹ Diplomatic Correspondent, ‘UN Special Rapporteur Proposes Suspending Digital Security Act’ *The Prothom Alo* (Dhaka, 30 May 2023) <<https://en.prothomalo.com/bangladesh/n49xcxloda>> accessed 4 June 2023.

⁸⁰ *ibid.*

⁸¹ *ibid.*

⁸² Asher Moses, ‘Facebook’s Privacy Lie: Aussie Exposes “Tracking” as New Patent Uncovered’ (2011) <<https://www.smh.com.au/technology/facebook-privacy-lie-aussie-exposes-tracking-as-new-patent-uncovered-20111004-11611.html>> accessed 3 June 2023.

espionage mechanism that has ever been invented,” consisting of a massive database of knowingly provided information.⁸³ However, several legal instruments address the right to privacy. Among those, article 12 of the Universal Declaration of Human Rights (UDHR) states that-

“No person shall be victimized by willful interference with their personal lives, homes, or emails, or by attacks on his dignity and character. Every person has the liberty to be protected by legal processes against such violations or threats.”⁸⁴

Then similarly, in article 17 of the International Covenant on Civil and Political Rights (ICCPR), “everyone is protected from arbitrary or unlawful interference with their privacy, family, home, or correspondence.”⁸⁵ The Human Rights Committee evaluates the implementation of the ICCPR and provides General Comments on specific problems concerning the Covenant. The United Nations General Assembly Resolution on the right to privacy in the digital age, and the General Comment of the United Nations Human Rights Committee on the right to privacy, home, family, communication, and protection of honor and reputation according to the International Covenant of Civil and Political Rights (ICCPR) demand that state monitoring be subject to the legality by means of simple and precise law; and that law must attempt to protect the right to privacy.⁸⁶ In General Comment No. 16 on Article 17 of the ICCPR, it is guaranteed that the right of every person to be protected from arbitrary or illegal interference concerning their privacy, relatives at home, or communication, as well as unlawful attacks on their honor and reputation.⁸⁷ As internet and data-collecting technologies were not available in 1966, the ICCPR’s scope was insufficient to assess the threat to individual privacy caused by them. As a result, the 1966 document’s definition is deemed inadequate given today’s technical improvements in communication and information collecting to be a full-fledged

⁸³ Stan Schroeder, ‘Julian Assange: Facebook Is A Spy Machine’ (2011) <<https://mashable.com/archive/julian-assange-facebook-spy-machine>> accessed 3 June 2023.

⁸⁴ Universal, (n 30) art 12.

⁸⁵ International, (n 31) art 17.

⁸⁶ SFLC.IN, ‘Right to Privacy Under UDHR And ICCPR’ (2017) <<https://privacy.sflc.in/universal/>> accessed 3 June 2023.

⁸⁷ UN Human Rights Committee (HRC), ‘CCPR General Comment No. 16: Article 17 (Right to Privacy), The Right to Respect of Privacy, Family, Home and Correspondence, and Protection of Honour and Reputation’ (8 April 1988) <<https://www.globalhealthrights.org/instrument/hrc-general-comment-no-16-article-17-right-to-privacy/>> accessed 4 June 2023.

definition of privacy protection. The 1988 General Comment goes merely a bit further in distinguishing the looming threat of state data collecting from state protection from interference with individuals' private data. However, because these technologies were still in the beginning stages, they were not completely acknowledged. The OHCHR additionally has a Special Rapporteur on the right to privacy, who is in charge of reporting and monitoring the right to privacy's implementation worldwide.⁸⁸ Moreover, article 8 of the European Union Charter of Fundamental Rights (EU Charter) includes a specific right to privacy protection.⁸⁹ Last but not the least, every citizen has the right to the privacy of his written communication and other means of communication, according to Article 43(b) of the Constitution of the People's Republic of Bangladesh.⁹⁰ However, the 2022 Draft Data Protection Act (DPA), which imposes additional limitations on data processing, storage, and transfer, seeks to alter Bangladesh's digital governance in a new direction.⁹¹ The DPA is Bangladesh's first data-privacy law, following in the footsteps of new digital-privacy regulations approved around the world in recent years.

In the case of *Richards v. Hertz*,⁹² The plaintiff claimed that her personal injuries hampered the pleasure of life and vigorous physical activity. However, the defense discovered photos of the plaintiff skiing on facebook and asked the court to provide access to the site. Instead of granting the request, the judge directed the plaintiff to give over photographs to the defense. The defense contended that the photos demonstrated that there could be additional information essential to the case on facebook. The court suggested that, in addition to the possibility of more evidence, perhaps there will be personal material that was irrelevant to the case. The court decided to record the scene and then select what to pass over to the defendant and what to keep from them. So according to this case decision, an individual's right to privacy is protected. On the other

⁸⁸ Office of the United Nations High Commissioner for Human Rights (OHCHR), 'Special Rapporteur on the Right to Privacy' (2 June 2023) <<https://www.ohchr.org/en/special-procedures/sr-privacy>> accessed 5 June 2023.

⁸⁹ European, (n 39) art 8.

⁹⁰ Constitution, (n 42) art 43b.

⁹¹ Stephen Weymouth, 'Inside Bangladesh's New Data Protection Laws' (2023) <<https://www.atlanticcouncil.org/in-depth-research-reports/issue-brief/inside-bangladeshs-new-data-protection-laws/>> accessed 10 June 2023.

⁹² *Richards v Hertz* [2012] 100 A.D.3d 728, [2012] <<https://www.boscolegal.org/blog/richards-hertz-corp-privacy-settings-social-media-investigations/>> accessed 10 June 2023.

hand, in the case of *Justice K.S. Puttaswamy v. Union of India*,⁹³ The Supreme Court of India recognized the right to privacy as a fundamental right under Article 21 of the Indian Constitution.

Then the ECtHR's rulings in *Botta v Italy*,⁹⁴ *MK v France*,⁹⁵ *S and Marper v UK*,⁹⁶ and *Bensaid v UK*⁹⁷ indicates that private life is not an exhaustive conclusion.⁹⁸ These rulings have demonstrated the difficulties in developing a fully developed definition of privacy that contains all aspects that any individual may consider private. However, the ECtHR has noted that personal data protection is fundamental to a person's enjoyment of respect for their private information and family life.⁹⁹

The right to privacy has traditionally been regarded as an essential component of an individual's life as well as personal liberty. Previously, privacy was primarily associated with physical or bodily privacy, with legislation and regulations focused on protecting against any physical intrusion into one's privacy. Today, against the backdrop of the internet's widespread nature, the right to privacy is starting to be understood as a multidisciplinary right, implying that privacy is no longer only concerned with the physical aspect, but also with communication and information privacy. The notion of privacy protection has taken on new dimensions in the age of the internet.

IMPACT OF SOCIAL MEDIA ON THE RIGHT TO PRIVACY

People have been increasingly concerned about the privacy concerns of utilizing social media platforms as they have grown in popularity. Many high-profiled examples have occurred in recent years in which users' personal data has been disclosed or stolen as a result of their usage of social media. Furthermore, a lot of people have concerns about the

⁹³ *Justice K.S. Puttaswamy (Retd.) & Anr. v Union of India & Ors.* [2017] 10 SCC 1[2017] <<https://privacylibrary.ccgmlud.org/case/justice-ks-puttaswamy-ors-vs-union-of-india-ors>> accessed 10 June 2023.

⁹⁴ *Botta v Italy* [1998] ECHR 493 (ECtHR) <<https://swarb.co.uk/botta-v-italy-echr-24-feb-1998/>> accessed 14 June 2023.

⁹⁵ *M.K. v France* [2013] ECHR 482 [2013] 19522/09 <<https://www.zmogausteisiugidas.lt/en/case-law/m-k-v-france>> accessed 17 June 2023.

⁹⁶ *S. and Marper v United Kingdom* [2008] ECHR 1581 <https://www.refworld.org/cases/ECHR_4937faae2.html> accessed 17 June 2023.

⁹⁷ *Bensaid v The United Kingdom* [2001] 2 WLUK 186 [2001] 44599/98 <https://www.refworld.org/cases/ECHR_3deb8a1e4.html> accessed 17 June 2023.

⁹⁸ *S. and Marper*, (n 96) para 47.

⁹⁹ *Botta*, (n 94).

manner in which social media corporations access and utilize user data. Countless people utilize message boards, dating apps, interactive social platforms, blog hosting platforms, and video sharing platforms to make themselves as well as their thoughts known to the rest of the world. While such intermediary companies enable the user-driven digital age, they also introduce new legal issues.¹⁰⁰ In today's world, technological advancement is important to everyone's daily life. Every person, whether intentionally or unintentionally, generates vast volumes of confidential personal data while exploring the World Wide Web every day. The privacy of the public has never been closer to risk.¹⁰¹ The digital platform has always boosted internet usage in many settings such as searches on the web, purchasing goods, consumer movement, use of smartphones, social media, and so on, resulting in massive amounts of data being generated. The use of technology has established a type of symbiotic relationship in this regard. It provides us with the ability to use and distribute information to our own advantage. Simultaneously, the data we produce is extremely valuable to the public and corporate bodies that support and govern our online interactions.¹⁰² While this has the potential to bring significant advantages and enhance societal results, it also puts our basic human rights at risk. The monitoring and gathering of huge quantities of personal information and metadata, as well as the management of such data using new analytical tools, have significant consequences regarding the right to privacy.¹⁰³ Based on the potential threats of communication scrutiny, hacking, stealing of data, unlawful personal data access, trans-border data flow, and so on, the UN has stated that people's offline rights, which include the right to privacy, must also be protected online.¹⁰⁴ However, nobody can deny the popularity of social media platforms like Facebook, Twitter, and Instagram. One would not be inaccurate to describe the obsession with which people, particularly the younger generation, are discovered connected to these social media platforms as addiction. Unless actively altered, the privacy settings on these social media platforms are typically set to a

¹⁰⁰ *Fair Housing Council of San Fernando Valley v Roommates.com LLC* [2007] 489 F.3d 921 [9th Cir. 2007]

<https://en.wikipedia.org/wiki/Fair_Housing_Council_of_San_Fernando_Valley_v_Roommates.com,_LLC> accessed 17 June 2023.

¹⁰¹ Rishika Taneja and Sidhant Kumar, *Privacy Laws 231* (1st edn, Eastern Book Company 2014).

¹⁰² New Zealand Human Rights Commission, 'Privacy, Data and Technology: Human Rights Challenges in The Digital Age' (2019) <<https://digitalnz.org/records/42614858>> accessed 17 June 2023.

¹⁰³ *ibid.*

¹⁰⁴ General Assembly Resolution 68/167, 'The right to privacy in the digital age' (UNGA, 2014).

particular default that permits unlimited access. Given that a user is not properly informed of the effects of missing to actively modify settings, this technique puts an incredible amount of users at risk.¹⁰⁵ Due to the fact that social media platforms enable users to post images, videos, comments, and viewpoints as well as create online networks and exchange information with one another, privacy issues also arise in this setting. If privacy settings are not changed, these images, videos, and other content are vulnerable to abuse by notorious internet elements. In addition to users' lack of knowledge or lack of useful information regarding changing privacy settings, there are instances in which these alleged privacy settings become accessible in such a complicated manner that it is sometimes aside from the knowledge of the average person, especially one without a background in computers, to edit the settings and prevent the information they provide on social media platforms from being improperly accessed. Another major privacy risk is the retaining of data for extended periods of time. Some websites on the internet are created with default settings that keep user data for a specified amount of time or in a lifetime. Such improper data retention is extremely harmful, especially when such data belongs to the user's personal information, putting their privacy at risk. The main cause for the spread of these social media privacy issues is the generation of vast information from these sites, which may simply be misused if there is a minor flaw in the system that manages these sites.

However, on the one hand, social media platforms give an effective platform for freely expressing oneself to a broad audience, while on the other hand, users' sensitive personal data may be exposed. In some cases, the user is aware that social media platforms are collecting information about him; yet, there may be times when the user is totally unconscious of the data trails he posts online, over which he has no control. Potential criminals can utilize such knowledge to commit physical offenses. As an example, in 2016, a group of criminals pretended to be police officers and broke into a hotel in Paris where American model Kim Kardashian¹⁰⁶ was visiting for the time being and stole her at gunpoint. It was then discovered that the criminals were following Kim's Instagram

¹⁰⁵ Rishika, (n 101).

¹⁰⁶ Mark Seal, 'The Inside Story of the Kim Kardashian Paris Hotel Heist' (2016)

<<https://www.vanityfair.com/style/2016/10/solving-kim-kardashian-west-paris-robbery>> accessed 18 June 2023.

postings in which she uploaded images of herself wearing expensive jewelry and used her Instagram to locate Kim's location. This case demonstrates how potential cybercriminals can use social media sites to perform traditional crimes. This was only one of many examples of how information provided or maintained by social networking sites could be used for means unknown to the user, infringing on the user's privacy. As a result, comparable to any other sphere of life as a whole, privacy is an essential component of social media life.

SOCIAL MEDIA AND A REASONABLE EXPECTATION OF PRIVACY

The increasing popularity of social media has made it easier for both public and private actors to obtain personally identifiable information. Many privacy activists have been concerned about these and other technology improvements, citing the negative impact on consumer privacy. Indeed, others argue that this tendency has put an end to a realistic expectation of privacy for data.¹⁰⁷ However, the legislation does not deprive consumers of private protection; individuals have privacy rights derived from common law, statute safeguards, and Bill of Rights protections. This writing addresses reasonable privacy expectations in private social media network discussions. Social media platforms have increased in popularity over the previous decade. Almost everyone utilizes social media to stay in touch with friends and family. It is actually quite common for a person or a company to have a half-dozen social media accounts, ranging from Facebook to Instagram. During a legal proceeding, these social media profiles can provide essential details. The use of social media and an expectation of privacy constitute hot topics in American courtrooms. However, there are some cases where any person can claim his/her right to expectation of privacy. Such as-

- In the latest case, *State v. Buhl*,¹⁰⁸ a teenager discovered pieces of her private document and her image uploaded in a way that was accessible to several of her classmates and schoolmates. A close friend of the teen's father was charged with

¹⁰⁷ David Alan Sklansky, 'Too Much Information: How Not to Think About Privacy and the Fourth Amendment' (2014) https://www.researchgate.net/publication/287855477_Too_Much_Information_How_Not_to_Think_About_Privacy_and_the_Fourth_Amendment accessed 17 June 2023.

¹⁰⁸ Mark Sableman, 'Do You Have Privacy Rights on Social Media?' (2016) <https://www.thompsoncoburn.com/insights/blogs/internet-law-twists-turns/post/2016-07-12/do-you-have-privacy-rights-on-social-media-> accessed 18 June 2023.

violating the peace and harassment for the postings; effectively, two criminal offenses based on conduct that breached the teen's privacy. When several of the judges doubted whether Facebook posts were regarded as public, and stated that scholars were needed to explain Facebook's secret workings, the case exposed a generational Facebook comprehension gap. However, the Supreme Court determined that basic Facebook concepts were obvious from the trial court evidence as well as did not necessitate expert testimony. The defendant's postings of the teen's private diary notations were deemed so vexing and private by the court that they satisfied the requirements of the crime of violating the peace, including the exhibition of indecent, offensive, or violent matter that consisted of annoying or warning the target. The court emphasized the deeply personal and embarrassing character of the posted things, and so considered the postings inherently irritating and abusive, using language typical in privacy issues. The court also deemed that the defendant's actions to be sufficient to warrant a harassment conviction. Thus, the teenager can claim his right to privacy on social media before the court.

- In another case of *United States v. Hambrick*,¹⁰⁹ J.L. McLaughlin, a police officer with the Keene, New Hampshire Police Department, logged into the internet on March 14, 1998, and accessed a chat room called 'Gay Dads 4 Sex.' McLaughlin used the screen name as Rory14. Detective McLaughlin met someone in this chat channel who went by the screen name as Blowuinva. On the basis of a series of online chats between Rory14 (Det. McLaughlin) and Blowuinva, McLaughlin came to the conclusion that Blowuinva was attempting to attract a teenager who was fourteen years old to leave the state of New Hampshire and spend time with Blowuinva. Detective McLaughlin did not have knowledge of the genuine identity of that individual with whom he was conversing because of his or her anonymity on the internet, nor did he know where Blowuinva lived. Blowuinva has simply given his name as Brad. McLaughlin acquired a legal summons from the state of New Hampshire and issued it to MindSpring, an Atlanta,

¹⁰⁹ *United States v Hambrick* [2000] WL 1062039 4th Cir.
<<https://www.quimbee.com/cases/united-states-v-hambrick>> accessed 18 June 2023.

Georgia-based internet service provider, in order to find out Blowuinva's identity and whereabouts. In response to a summons from the state of New Hampshire, MindSpring was ordered to provide any records relating to the payment or at least user's data information subject to using the service provided on March 14th, 1998 at 1210 HRS (EST) via Internet Protocol Number 207.69.169.92. The summons was complied with by MindSpring. The issue before this court was whether the court should suppress the material obtained from MindSpring and everything that followed as a result of the government's failure to obtain a lawful summons. The court held that when the defendant went online under the username Blowuinva, he was not fully anonymous. It can not be denied that the genuine identity of Blowuinva would be difficult to determine for the typical member of the public. Nonetheless, when the defendant agreed to purchase internet service from MindSpring, he intentionally provided MindSpring and its workers with his name, location, credit card information, and phone number. The main argument for this petition to suppress the materials obtained from the defendant's residence failed because the court decided that the MindSpring documents were not so protected. So, the defendant can easily claim his expectation of privacy before the court.

- In the case of *Pietrylo v. Hillstone Restaurant Group*,¹¹⁰ a staff member created a private closed group on Myspace that was only accessible by invitation. The group was mostly used to express dissatisfaction with their job. When one of the managers gained access to that group, the group's creator filed a lawsuit against the manager for violation of privacy. The Court ruled in favor of the privacy violation on the grounds that the group was supposed to be secret and hidden from public view because it was by invitation only and every member had their own username and password. So, here the expectation of privacy is sustained before the court.

Overall, based on above all the three cases, it can be said that when a person improperly and without any kind of permission, posts or shares or gets any access over another person's information or data then that another person has the right to expect a reasonable

¹¹⁰ *Pietrylo v Hillstone Restaurant Group* [2008] USDC DNJ 31 [2008] 2:06-cv-05754
<<https://casetext.com/case/pietrylo-v-hillstone-restaurant-group>> accessed 18 June 2023.

privacy; and that person's right to privacy is still safeguarded and completely executable in social media.

On the other hand, social media platforms like Facebook, Twitter, and Instagram will willingly disclose information about a person and personal contents to law enforcement organizations, whether or not they obtain a warrant.¹¹¹ If an organization gathers and keeps an individual's data, the law enforcement agency will almost certainly be able to get it with the required paperwork, such as a warrant, under the provisions of the Electronic Communications Privacy Act (ECPA).¹¹² Moreover, depending upon the type of inquiry, law enforcement agencies can access the majority of the data gathered and maintained by tech companies, comprising the contents of individuals' texts, emails, call records, photographs, videos, papers, contact lists, and calendars.¹¹³ However, there are some cases where any person can not claim his/her right to reasonable expectation of privacy on social media.. They are as follows-

- In the case of *United States v Gines-Perez*,¹¹⁴ a defendant was accused of narcotics trafficking and laundering money. The government acquired a search warrant and took many things, including a computer, from the defendant's residence. The government then explored the computer and discovered a photo of the defendant carrying a big sum of money. The defendant claimed that exploring his personal computer infringed his rights under the Fourth Amendment because the photograph contained reasonable expectations of privacy. The court dismissed the defendant's argument, ruling that he had no expectation of privacy in the photograph since he had willingly uploaded it on his website, which was public. The court pointed out that the defendant failed to take any measures to limit

¹¹¹ Los Angeles Criminal Defense Attorney, 'Is the Government Monitoring Your Social Media Accounts?' (2022) <<https://werksmanjackson.com/blog/is-the-government-monitoring-your-social-media-accounts/>> accessed 18 June 2023.

¹¹² Sara Morrison, 'Here's How Police Can Get Your Data- Even If You Are Not Suspected of A Crime' (2021) <<https://www.vox.com/recode/22565926/police-law-enforcement-data-warrant>> accessed 18 June 2023.

¹¹³ Jack Nicas, 'What Data About You Can The Government Get From Big Tech?' *The New York Times* (New York, 14 June 2021) <<https://www.nytimes.com/2021/06/14/technology/personal-data-apple-google-facebook.html>> accessed 18 June 2023.

¹¹⁴ *United States v Gines-Perez* [2002] F Supp 214 (D.P.R.) <<https://casetext.com/case/us-v-gines-perez-2>> accessed 20 June 2023.

access to that photo such as hiding the website or utilizing encryption. The court further stated that the defendant did not take any attempts to hide the photos, such as adopting another name or uploading it anonymously. The court determined that the defendant possessed no proper expectation of privacy in that photo as well as that the government's seizure of his personal computer did not infringe on his Fourth Amendment rights.

In short, the court determined that an accused had no reasonable expectation of privacy in an image placed on his personal website since he willingly uploaded it on an open platform without adopting any steps to restrict access or disguise his identity.

- In the case of *United States v. Meregildo*,¹¹⁵ The defendant, Melvin Colon, was trying to hide evidence collected by the government through his Facebook account. The government collected this information from a Facebook friend who assisted law enforcement. Colon's friend on Facebook allowed government authorities access to Colon's profile. The government discovered that the accused posted comments about earlier acts of aggression, threatened rival gang members with new violence, and attempted to keep the loyalty of other claimed members of the defendant's group. The evidence in this instance was evaluated by the Judge in light of Colon's privacy settings including his community of friends. The Judge refused Colon's move to suppress, stating that his information from Facebook was collected legally and was important in the case. The Judge noted Colon's usage of privacy settings on his Facebook profile. The cooperating witness, Colon's Facebook friend, was able to view the posts that he posted to his account because of these privacy settings. Colon allowed friends to access his posts, and he maintained a large group of friends. The Judge reasoned that Colon's expectation of privacy was terminated when he published on Facebook. Also the Judge determined that collecting this information did not violate the Fourth Amendment.

However, the Fourth Amendment guarantees the right of the American people to be free from unwarranted government searches.¹¹⁶ Overall, while Facebook privacy settings

¹¹⁵ *United States v. Meregildo* [2013] USDC SDNY 11 [2013] 11 Cr. 576
<<https://casetext.com/case/united-states-v-meregildo>> accessed 20 June.

¹¹⁶ U.S. CONST. amend. IV <<https://constitutioncenter.org/the-constitution/amendments/amendment-iv>>
accessed 21 June 2023.

permit viewing of postings by friends, government officials may access those via a collaborating witness who is a friend without violating the provisions of the Fourth Amendment. While the defendant had every reason to believe that his profile on Facebook would not be disclosed to law enforcement agencies, he had no reason to believe that his friends could maintain his profile secret. The defendant's reasonable expectation of privacy was violated when he shared posts with his friends, because those friends were free to utilize the information any way they saw fit, even sharing it with the authorities.

- In the other case of *Cinetel Films, Inc. v. Does*,¹¹⁷ The plaintiff, Cinetel Films, Inc., brought an allegation against 1,052 John Doe defendants saying that they downloaded and distributed the plaintiff's copyrighted film using BitTorrent. The plaintiff attempted to summon the defendants' internet service providers (ISPs) in order to find out their identities in order to bring suit against them for copyright infringement. The defendants claimed that the plaintiff's summons violated the First Amendment's guarantee to privacy and their Fourth Amendment privilege to free speech. The court determined that defendants had no legitimate expectation of protecting their privacy in their Internet Protocol (IP) addresses because they had freely exposed them to ISPs when they connected to the Internet. The court additionally ruled that the defendants did not have a First Amendment right to remain anonymous since their speech was not safeguarded by the First Amendment and the plaintiff had a genuine interest in identifying them in order to sue them for copyright infringement. The court concluded that the plaintiff's summons did not infringe on the defendant's rights under the Fourth Amendment because they had no reasonable expectation of privacy in their Internet Protocol (IP) addresses and the plaintiff's interest in identifying them in order to sue them for copyright infringement exceeded any privacy interest they may have had in their IP addresses.

So in this case, the court determined that the defendants' IP addresses did not give rise to a reasonable expectation of privacy and that the plaintiff's summons did not infringe

¹¹⁷ *Cinetel Films, Inc. v. Does* [2012] 853 F.Supp.2d 545 [2012] 555-56
 <<https://casetext.com/case/cinetel-films-inc-v-doe>> accessed 21 June 2023.

upon their Fourth Amendment rights. The plaintiff, Cinetel Films, Inc., won the case as a result, and the defendants were forced to disclose their personal information to the plaintiff in order that it could sue them for copyright infringement. So, despite seeking the reasonable expectation of privacy, the defendants can not enjoy this right to privacy.

- The primary question in *Vasquez-Santos v. Mathew*¹¹⁸ was whether private social networking material was discoverable or allowable in courts. The plaintiff in the case was a semi-professional basketball player at one point. He claimed that a car accident made him disabled and that he could never again play basketball. The defendant discovered contradictory evidence throughout an exhaustive social media inquiry. They provided social media images of the plaintiff playing basketball following the accident. Friends tagged the plaintiff in these photos. The plaintiff claimed that the images were old and hence inadmissible. In its response, the defendant asked for an order granting a third-party data collection company access to the subject's private information in order to investigate these allegations. This request was denied by the trial court. The appeal court, however, overruled that ruling and granted access to the plaintiff's private information because of its probative significance and the defendant's entitlement to any content that showed the defendant doing physical activities. Their decision, like many others, demonstrates that private social media data can be discovered if it contradicts or conflicts with a plaintiff's alleged restrictions, disabilities, and losses, as well as other claims (*Patterson v Turner Constr. Co.*, 88 AD3d 617, 618 [1st Dept 2011]). In this instance, the court permitted the defendant access to the plaintiff's private Facebook information in order to fight against the plaintiff's harm claims. It is also worth noting that the plaintiff in this case did not publish the original images in question; they were captured by a friend and the plaintiff was merely tagged in them. The fact that the plaintiff did not physically shoot or share the images was of no import, according to the court, because he was tagged, and thus allowing him access to the content.

¹¹⁸ *Vasquez-Santos v Mathew* [2019] N.Y. Slip Op. 541
 <https://nycourts.gov/reporter/3dseries/2019/2019_00541.htm> accessed 22 June 2023.

In essence, this case established that private social media material might be discovered in court and that the defendant had the right to access the plaintiff's social media profiles. The plaintiff's postings on social media were relevant to his claim, according to the court; and the defendant had a reasonable interest in collecting them. The plaintiff's social media sites were also not private, according to the court, because he had disclosed information regarding his physical condition as well as his activities on them. Additionally, the plaintiff was not only the one who is related with that photo. As the plaintiff was tagged on that photo, it means that photo was accessible and visible to more than one person. So it can not be considered as private data. As a result, the plaintiff can not claim his reasonable expectation of the right to privacy here.

CONCLUSION

The effect of social media platforms on the right to privacy and the freedom of speech is a challenging and complex issue that has generated a lot of controversy in recent years. On the one hand, social media has given people a global stage to share their ideas and beliefs, promoting freedom of speech. Conversely, social media has also given rise to unethical practices including arbitrary censorship, misleading data, and data assessment, which can violate the right to privacy and impose restrictions on the freedom of expression. However, the relationship between social media, freedom of expression, and the right to privacy has both positive and negative impacts. The right to privacy is an essential freedom of all citizens, and it is safeguarded by the Bangladesh Constitution as well. Social media use has resulted in the collection and dissemination of personal information, raising privacy concerns. Social media networks gather data on their users, allowing them to utilize it for specific marketing or even sell it to unknown parties without the consent of the user. As a result, high-profile incidents of users' private information being disclosed or hacked as a result of utilizing social media have occurred. Social media, on the other hand, has created a venue for free expression. It has given individuals a voice and allowed them to openly share their opinions and beliefs. However, this freedom of expression has also resulted in an increase in hate speech, fake news, and other destructive information, raising concerns about social media's impact on society. The government of Bangladesh has taken attempts to control social media and

defend the right to privacy. The Digital Security Act was passed in 2018 in order to govern the use of online platforms and protect citizens' privacy. However, the Act was widely criticized for being overly broad and ambiguous, raising worries about its influence on free expression. Finally, social media has had a profound impact on the freedom of speech and the right to privacy. While it has created a way for people to freely express themselves, it has additionally caused privacy concerns and the proliferation of bad content. The government must find an appropriate harmony between controlling social media to safeguard privacy and allowing people to express themselves freely.